

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of January 15, 2025 ("Effective Date") by and between Acme Technologies Inc., a Delaware corporation with offices at 123 Innovation Drive, San Francisco, CA 94105 ("Company") AND

Beta Consulting Group LLC, a New York limited liability company with offices at 456 Park Avenue, New York, NY 10022 ("Consultant") (each a "Party" and collectively the "Parties")

RECITALS

WHEREAS, the Parties wish to explore a potential business relationship involving the development and integration of a new product;

WHEREAS, in connection with the Purpose, each Party may disclose to the other certain confidential and proprietary information;

NOW, THEREFORE, in consideration of the mutual covenants and agreements herein, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1 "Confidential Information" means any and all non-public information, whether in written, oral, electronic, or visual form.

1.2 Confidential Information shall not include information that: (a) is or becomes publicly available through no fault of the disclosing Party.

2. OBLIGATIONS OF RECEIVING PARTY

2.1 The Receiving Party shall hold all Confidential Information in strict confidence and not disclose it to any third party without the prior written consent of the disclosing Party.

2.2 The Receiving Party shall protect Confidential Information using no less than reasonable care.

3. TERM AND TERMINATION

3.1 This Agreement shall continue for two (2) years from the Effective Date, unless earlier terminated upon thirty (30) days written notice.

3.2 Confidentiality obligations survive termination for three (3) years.

3.3 Upon termination, the Receiving Party shall return or destroy all Confidential Information within fifteen (15) business days.

4. INTELLECTUAL PROPERTY

4.1 No license is granted by disclosure of Confidential Information.

5. REMEDIES

5.1 Breach may cause irreparable harm; the non-breaching Party may seek injunctive relief.

5.2 The prevailing party may recover reasonable attorneys fees.

6. NON-SOLICITATION

6.1 Neither Party shall solicit employees of the other for twelve (12) months following termination.

7. PAYMENT TERMS

7.1 Consultant shall receive a monthly retainer of \$15,000 payable within thirty (30) days.

7.2 Late payments accrue interest at 1.5% per month.

7.3 Expenses up to \$5,000/month do not require pre-approval.

8. LIMITATION OF LIABILITY

8.1 Neither party liable for indirect, consequential, or punitive damages.

8.2 Total aggregate liability shall not exceed \$500,000.

9. GOVERNING LAW

9.1 Governed by Delaware law.

9.2 Disputes submitted to mediation, then binding arbitration in San Francisco.

10. GENERAL PROVISIONS

10.1 Entire agreement; supersedes all prior agreements.

10.2 May not be amended except in writing signed by both Parties.

Executed as of the Effective Date.

ACME TECHNOLOGIES INC.

By: Sarah Chen, CEO

BETA CONSULTING GROUP LLC

By: Michael Torres, Managing Partner